

Law, democracy, and the state of emergency

A theory-centred analysis of the democratic legal state in times of exception

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Abstract The renewed scientific discussion about the state of emergency has led to many theoretical endeavours, which attempted to find appropriate descriptions of the exceptional phenomenon. However, because of this enormous diversity, their object-related connection threatens to become blurred. An essential reason for this lies in the interdisciplinary entanglement of the discourse. The aim of this article, therefore, is to formulate a meta-theoretical regulatory proposal to compare these competing legal-philosophical and political-theoretical explanatory approaches and to prove its suitability on the basis of the dispute between Otto Kirchheimer and Carl Schmitt in the last days of the Weimar Republic. The two authors act as representatives of two mutually exclusive theoretical perspectives, leading to significant differences in the descriptive and evaluative assessments of the state of emergency.

As a result, it will become clear that the recognition of the threat to the rule of law and democracy in times of emergency depends heavily on the respective perspectives on legal and democratic theory, and that the normative conclusions can diverge massively despite similar diagnoses. Thus, without fundamental conceptual clarifications and reflections on the underlying premises, it is not possible to talk meaningfully about the connection between law, democracy, and the state of exception.

Recht, Demokratie und Notstand

Eine theoriezentrierte Analyse des demokratischen Rechtsstaates in Ausnahmezeiten

Zusammenfassung Die neu entbrannte wissenschaftliche Diskussion über den Ausnahmezustand führte zu vielfältigen theoretischen Bestimmungsversuchen, deren Zusammenhang mitunter zu verschwimmen droht. Ein wesentlicher Grund hierfür

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liegt in der interdisziplinären Verschränkung des Diskurses. Ziel dieses Aufsatzes ist es daher, einen metatheoretischen Ordnungsvorschlag zum Vergleich dieser konkurrierenden rechtsphilosophischen und politiktheoretischen Erklärungsansätze zu formulieren und dessen Tauglichkeit anhand der Auseinandersetzung zwischen Otto Kirchheimer und Carl Schmitt in den letzten Tagen der Weimarer Republik zu belegen. Die beiden Autoren fungieren dabei als Repräsentanten zweier sich wechselseitig ausschließender theoretischer Perspektiven, was zu gravierenden Unterschieden hinsichtlich der deskriptiven und evaluativen Einschätzung des Ausnahmezustandes führt.

Im Ergebnis wird sich zeigen, dass die Anerkennung einer Bedrohung des Rechtsstaates sowie der Demokratie in Notstandszeiten stark von der jeweiligen rechts- und demokratietheoretischen Perspektive abhängt und die normativen Schlussfolgerungen trotz ähnlicher Diagnosen massiv divergieren können. Ohne grundbegriffliche Klärungen und Reflexion der jeweiligen Prämissen ist es daher nicht möglich, sinnvoll über den Zusammenhang von Recht, Demokratie und Ausnahmezustand zu sprechen.

1 Introduction

The essential *raison d'être* of the modern state since Hobbes lies in its promise of security. Depending on the political tradition, this value then gets interpreted in a more individualistic or collectivistic manner. With the far-reaching removal of the monarchist model of order and its replacement by a representative-democratic version, compliance with this promise was made more difficult. The enforcement of necessary measures to stabilize the state in times of emergency became justifiable, and, therefore, time-consuming. Democratic processes seemed too slow to be effective in responding to existential crises. The state of emergency, institutionalized as a “constitutional dictatorship”, feeds on this assumption till today (Rossiter 1949, p. 399).¹

What exactly is the state of exception and when is speech of it appropriate, however, are not fully clarified yet, despite various empirical and theoretical studies in recent years. Some approaches limit themselves to understanding states of emergency in the formal legal sense, whereas others already understand informal shifts in state actions as a step away from a normal situation (Gross and Ní Aoláin 2006). Additionally, in the course of the securitization debate, the focus was on speech acts as starting points for the construction of fundamental threats, thereby justifying “exceptional politics” (Williams 2015, p. 115). For this reason, it makes sense to further investigate the contemporary theorization of this phenomenon. How can we relate the different perspectives to one other? How can the different characterizations of the state of exception be compared?

This paper analyses the relationship between democracy and law in the context of emergency in the light of different discourses within the history of ideas. It will present some systematic reflections on the theoretical question of how closely the

¹ The following German quotations have been translated by the author.

state of exception is linked to our political and legal system and whether there are alternative arrangements that can be considered, which minimize the danger for democracy in the case of emergency. Here, it is necessary to distinguish between a legal-philosophical and a political-theoretical debate, which, even if certain overlaps cannot be denied, address the state of emergency in their own way, sometimes in a narrow and sometimes in a wider sense. In other words, the state of emergency is addressed from two angles: its legal and its political dimensions are brought to the foreground.

With regard to the first scientific access, the philosophy of law, the following section describes an inevitable non-law-based gap in our modern legal system as a gateway for the state of emergency. The starting point of this diagnosis is a system-theoretical view of law. It is then possible to identify three kinds of reactions within the contemporary philosophical discourse attempting to solve the legal-gap problem: political closure, balancing the tension, or rethinking the legal order in a completely new manner. This section examines, in other words, the connection between *law and exception* (2). The next part approaches the state of emergency by looking at it from a second strand of discussion, the political-theoretical perspective, and by reconstructing different attempts to determine the nature of exception while referring to the dominant theories of democracy. This allows us to bring different answers to light in order to understand, handle, or even solve the problem of crises and executive special power. By examining the relation of *democracy and exception*, it becomes clear that depending on the premises of the underlying political theory, different dimensions of the state of emergency come into view, and that its consequences are more or less heavily problematized (3). Finally, the last part examines the dangers of democratic exceptions by providing a review on the debate between the German theorists of law and politics, Carl Schmitt and Otto Kirchheimer, who were engaged in an argument about real democracy and the constitution of Weimar. With reference to the conceptual framework previously outlined, it becomes clear why a descriptive and normative understanding between the two theoreticians about the role of emergency in times of crisis was no longer possible. Rather, their debate on legality and legitimacy shows that the tense connection of these two normative principles can disrupt liberal democracy and the rule of law as a whole. With Kirchheimer, it is possible to show that the state of emergency is a danger to democracy because it deforms the relation of these ideas (4). The conclusion of this article is a summary of the results and insights provided by this proposal to structure the scientific discourse. Neither does it appear purposeful to restrict the state of emergency too narrowly, as otherwise communicative practices of generating exceptional cases will go out of sight, nor is it possible to critically situate exception-based actions without recourse to profound political ideas of a normative nature (5).

2 Law and exception

Law implies force, even though force is interpreted and justified in its particular way in every law regime (Luhmann 1981, p. 158). The ancient law still knew a just order it could call upon. For this reason, it took the form of a teaching

body and continuously pursued the recreation of this objective system. The modern law, which underwent a process of demoralization, fulfils its functional purpose by utilizing disciplinary action. The legitimacy of the positive law can no longer rely on a higher authority. Hereby, it features a self-reflexive basic structure, as it justifies its own existence, constitutes its own normativity, and, at the same time, limits itself. Its self-observation and self-reproduction are results of this mechanism (Teubner 1989, p. 28 ff.).

If the legal system is understood as the result of a process of functional differentiation, if it is regarded as an autopoietic subsystem with its own language, how can the exceptional case be brought together with the complex operational logic of law? If it is possible to disclose this internal connection, it becomes feasible to interpret various contemporary legal philosophical movements as reactions to these facts and to compare them from the aspect of their answers.

A helpful starting point is offered by systems theory, which captures this self-reflexive nature of modern law through the idea of a twofold ability of differentiation. The system of rights operates with the help of a binary coding, aiming at the difference of legal and illegal – it allows one to identify a certain matter of fact as lawful – and, at the same time, it can refer to this distinction itself, meaning it is able to qualify a certain situation as a case of legality or non-legality. Only this ability allows the legal system to distinguish itself from other social systems and refer to them as its environment. Without the capability to separate between both these elements, the system of rights cannot be identical with itself, as Luhmann (1987, p. 243) puts it.

Following this argumentation of a twofold distinction, a differentiation inward and outward, this also means as a consequence that the law always shows a gap, which can be described as an exception. The reason for this gap lies in the laws' responsiveness. Within this exception, the law is confronted with its own other. Since the system of rights knows that a non-legal counterpart exists and that its preconditions are never fully protected, the possibility arises that – speaking with Menke (2015, p. 120) – the law “has to prevail within the mode of non-legality against non-legality”. If the law is confronted with a situation of crisis that does not apply to its own operational logic, it is forced to secure normality of its own form at any cost, even if it has to fall back on measures that are not codified or covered by legality. After all, without a state of normality, law loses its meaning. Therefore, it is caught in an aporetic fight against its own helplessness.

However, the law-immanent explanation of the exceptional situation, for which systems theory argues, reaches its explanatory limits here, since an additional force is required to restore the legal normal state. The insistence on the separation of the different social systems and the denial of the controllability of non-systemic processes distracts from the fact that it is still the state that mobilizes all capacities in dangerous situations – even if it delegates tasks to private organizations – in order to secure or restore public order.

Based on the identified legal gap, the dominant legal philosophical approaches can be systematized. The provisions of the state of emergency emphasized by Schmitt and Agamben aim at the same direction. The former points out that the rule “only lives from the exception” and emphasizes that the exceptional order should not be

equated with chaos (Schmitt 1922, p. 21). The legal system withdraws without the state abdicating. Instead, the state is furthermore responsible for restoring the normal state and for examining what “is required under the situational circumstances” (Schmitt 1921, p. 17). Sovereign then is “the one who definitely decides whether this normal condition really prevails” (Schmitt 1922, p. 19). Agamben (2014, p. 7), in turn, intentionally emphasizes that the state of emergency can be described as “the legal form of something which cannot have a legal form”. In this respect, the term describes a threshold designation in which the order of law is suspended to ensure its own existence. While the norm still stays valid, its application is intermitted. In times of exception, it is the executive which, as the guardian of law, is obliged to close this open gap (Agamben 2014, p. 41). Of course, both theories suffer from different weaknesses. They both rely on a “static model of norm and normality” and thereby ignore “that a suspended legal order after the annulment of its suspension” is not “easily restored” (Frankenberg 2017, p. 13). Normative orders, as Möllers (2015, p. 387) emphasizes, cannot easily be installed or deactivated. It is more appropriate to assume a gradual stability, since they are equally “more unstable, clearly marked by violations and transgressions, and at the same time more stable, and thus not so easy to be removed from the world”, as the “legalistic speech of exceptions and states of emergency as the basis of an order suggests”. Without further elaborating this criticism, it makes sense to use the two authors as examples of an (in its consequences) unique radicalization of this ontological determination of the legal system, especially considering its political perspective.

On the basis of this characterization, depending on a theory of differentiation as regards rights, it is possible to identify two theoretical consequences that seek to counter the legal gap problem. Both of them deliver different suggestions to fill the gap of the legal system. On the one hand, there is the right-wing notion of Schmitt’s concept of sovereignty, which stipulates – as already indicated – that the powerful state has the task of overcoming the stress-induced state of emergency by extended executive powers. This statist view – to be found, for example, in Forsthoff and in an alleviated form in Böckenförde – declares the state as a guarantor of the legal order, thereby reducing the validity of the actual normative arrangements because the value it obtains is not independent but attributed to a different authority (van Ooyen 2007). Like Schmitt, Forsthoff also regarded “the elimination of legality through legitimacy, the destruction of formal obstacles in the name of a higher idea [...] as the viable way to reshape the Weimar constitution” (Meinel 2012, p. 60). The conviction of the need for a strong executive to intervene in the event of a state of emergency can be traced back to his post-war writings in which he no longer assumes a given state of social crisis that must be force-pacified by a total state, but where he starts from a relatively stable post-war order in which the state only takes over complementary functions for the self-stabilizing society. Since no acute threat of a civil war condition is foreseeable, the establishment of far-reaching emergency instruments is hardly necessary. But this could change rapidly under new circumstances. As before, the state must be able to respond to attacks of its core components with the greatest possible authority (Saage 1978).

Similarly, Quaritsch (1996, p. 24ff.) uses Schmitt's definition of sovereignty to attribute emergency powers to constitutional bodies, allowing them to violate the legal order of the state. What connects Böckenförde with Schmitt is not an anti-liberal political thinking, but the attempt to use Schmitt's terminology to break through the "positive legal surface" and shed light on the underlying "actual content of order" (Böckenförde and Gosewinkel 2011, p. 359). He, therefore, also shares Schmitt's ontology of the political which, consequently thought through, turns out to be the origin of the state's function as security guarantor of the political unity. As far as the role of the state of emergency and the distinction between law and measure are concerned, he sees himself in the same line as his intellectual teacher and refers to a situation of bondage within the normal "rule of law housing", despite an economic crisis, to which a more decisive reaction could be made possible (Böckenförde and Gosewinkel 2011, p. 372).

Apart from that, we find a left-wing notion of Schmitt centred around the idea of a new form of law, a pure and pacified law, which, in the words of Agamben (2014, p. 104), "does not obligate, does not command, does not forbid, but only speaks for itself". This chain of thought corresponds to Loick's (2017, p. 288f.) efforts towards developing a post-juridical law, which refrains from a law-based programming of social conditions in favour of an experimental transformation of society. The most recent works of Menke (2015, p. 372) point in a similar direction because he demands a rebellious law of "opposing rights" against the established model of "self-rights". For the moment, it should suffice to point out the existence of this debate, since the contours of such a novel legal form remain quite shadowy so far. Rather, these authors demand a dynamic alternative against the exception-based legal order, a system which is meant to replace the dominant one. This alternative either opposes the state of emergency directly, or establishes a practice, which realizes a "true" state of emergency, abolishing the necessary violence deeply connected to the system of rights. Reformulated in the terminology of Benjamin (1999, p. 204), the circle of "executive", "law-making violence", and "administrative", "law-preserving" violence should be ruptured with recourse to a "divine", "sovereign violence".

Between those two poles of reaction towards the state of emergency lies the model of the liberal constitutional state, which aims at limiting the conditions of the suspension of law in a legal way. It intends to ease this suspension through codification, to tame its effects through formalized processes and non-irreducible normative principles. Herein lies the difference between the modern representative democracy and its ancient counterpart, as in the latter special power was not processed in the form of an executive prerogative, but bound to an office, which was settled beyond the normal institutional order (Lemke 2017a, p. 3). Hence, in comparison, the ancient thinking reacts to the legal gap in the opposite manner. While the Greek version after Aristotle interprets the non-legal area as not yet permeated by law, the Roman model represented by Cicero construes this space as part of a degeneration process: the non-legal area is no longer composed in a legal way.

In the modern awareness that one cannot escape, the paradoxical logic of the exception some cases remain "in which", as Luhmann (2013, p. 285) points out, "the law allows under legally regulated conditions legal violations of the law itself".

Table 1 *The Legal Gap and its Theoretical Treatment by Competing Approaches*

<i>Diagnosis</i>		Legal system features a specific gap	
<i>Therapy</i>	New form of right	Control and enclosure ("modus vivendi")	Authoritarian shutdown
<i>Approach</i>	Left-Schmittian	Liberal rule of law	Right-Schmittian

The inevitability of this situation appears to be known by the legal state. "If the exception", as Loick (2012, p. 222) reflects, "primary constitutes the law, then its excluding moment cannot be eliminated from the law". The intention behind the constitutionalization of the emergency case lies in the promise to keep its consequences manageable. Therefore, two things are to be guaranteed: an effective, with regard to intervention, as well as (concerning personal rights) a safe living together. Table 1 summarizes the spectrum of strategies offered by legal philosophy in order to deal with the identified legal gap.

As a result, we can state that these approaches agree on the impossibility to conceive the modern self-reflexive law without any exception-based suspension of rights. However, they draw strongly deviating consequences in terms of possible solution strategies.

In contrast, political philosophy tackles the state of emergency by expanding its perspective. Neither can it be limited to a right-specific figure, nor is the political theory afraid to enrich these ontological and functionalist interpretations by normative analysis. The situation of emergency gains a greater plasticity against the background of this holistic determination. But, of course, it cannot be assumed that one can speak of a uniform discourse. Rather, the contemporary theories of democracy react to the existence of emergency measures in manifold ways and, as a result, assume a definition for the term "state of exception" in diverging ways. This also leads to different normative considerations towards the phenomenon of emergency itself, to its legitimization. The further illumination of this complex relationship within the dominant approaches will be discussed in the following paragraph.

3 Democracy and exception

The state of exception seems to be the nightmare of democratic ruling, because it establishes an authoritarian way of governing that runs contrary to the procedural logic of democracy. The stability of democracy depends "in times of emergency on a radical anti-democratic practice" (Frankenberg 2017, p. 12). But the anxiety about emergency powers and the definition of emergency itself varies between different theories of democracy, depending on their specific tradition. This is because their fundamental theoretical architecture, for example, in relation to the ideas of the state, people, freedom, security or legitimacy, sometimes varies greatly. Indeed, these categories even receive a different hierarchic status and value.

Owing to its close connection to the rule of law, the state of emergency poses a special problem for the *liberal* theory of democracy, if legitimacy-creating procedures are adjourned, if the balance of power gets softened, and the boundaries of

the guaranteed basic rights are redefined. The early liberal theorists knew about the necessity of crises defence. They supported certain barriers to justify the announcement of the state of emergency. Locke integrates the state of emergency into the institutional legal system, although he still speaks up for an extensive authorization. He justifies the existence of the prerogative by referring to their duty to protect the public good. This power could act “without the prescription of the law and sometimes even against it”, thereby being capable of reacting effectively to unforeseeable eventualities (Locke 1962, p. 199). Even though the authors of the Federalist Papers undoubtedly stand in the very same tradition, they already bind the proclamation of a state of emergency stronger on the necessity of explicit justifications. Specifically, they reflect on the dangers the institutional setting of the political system is confronted with in general, and how the individual defences could suffer in particular, how both elements come under pressure in times of emergency (Hamilton et al. 1992, p. 354 f.). Therefore, in the eyes of these liberal thinkers, only the restoration of the status quo ante could serve as a justification for a concentration of power, at which the measures for legal protection became successively broadened.

Republicanism, on the other hand, regards the delegation of power as a problem of minor relevance because of its essential notion of a value-integrated citizenry. Therefore, the main focus lies on the sovereignty of the people, not of the constitution. The reason for this can be found in the dominant role of forming a political will, which – opposed to the liberal idea – does not just mean decision-making in order to justify the political exercise of power. Instead, “constituting society as a political community” is their originary function and to commit government “programmatically to the execution of certain policies” is one of their highest concerns (Habermas 1999, p. 289). Relating to times of crises, this means that the political leadership possesses a leap of faith because of its status as an effusion of a sophisticated understanding of collective will forming. In other words, the polity gains a particular dignity declaring the self-assertion against any threat to a special duty. Especially the remarks of Machiavelli and Rousseau support this movement of thought. Machiavelli addresses executive special powers against the background of the classical Roman republic and locates one of the reasons for their permanence and stability in them. For him, the state has an unconditional right to self-preservation, which is reflected in the idea of the *raison d'état* which he has championed. Maintaining the integrity of the political community is the highest imperative for the Florentine (Machiavelli 2000). For the latter, sovereignty is located at the people, which is conceptualized as a moral community and not as a loose tie between coexisting individual citizens. It gives the state the task of preserving the unity of all as the demos. Therefore, the government is only regarded as a unit of instruction between the people and the state. It is precisely the executive that is responsible in following the *volonté générale* and in defending the collective freedom of the political community (Rousseau 2008). A legal protection is, therefore, not necessary, since it is an imperative allotment of governmental tasks. As an outlet of popular sovereignty tied to action in this very will, the government cannot be dangerous to the demos.

In the *deliberative* theory of democracy, fundamental rights and the principle of democracy are regarded as equally original. For Habermas (2014, p. 133), both elements are mutually supportive; their internal correlation lies “in the normative

Table 2 *The State of Emergency from a Theory of Democracy Perspective*

Approach	Freedom understood in terms of ...	Determination of the demos as a ...	State of exception interpreted as a ...
Republicanism	Collectivity	Political community	Political category
Liberalism	Personality	Community of rights	Judicial category
Deliberalism	Inter-personality	Community of language	Discursive category

content of a mode of exercising political autonomy”, which requires both: legal form and discursive will-formation. The moralization of politics, which strongly favours this model, places strict limits on the exception regime. In this respect, deliberative democracy is particularly close to the liberal “rule of law” idea. The view of communicative action within civil society raises awareness of the ambiguity of the state of emergency. It can then no longer be shortened to the status of a legal tool, reduced to a moment of juridical-political decision. Rather, it is equally a “language-strategic practice”, with the help of which influence can be exerted on the public discourse, and by which a “targeted disintegration of the *pouvoir constituant*” can be organized. This allows Lemke (2017b, p. 282f.) to characterize “the state of emergency” against Schmitt “as the other of democracy”, not as a legitimate element in the architecture of democracy. The quality of democracy could be measured by the extent to which the linguistic placement of the exceptional issue in public space is already well-established and by the means of which plausibility patterns the wish for expanded executive powers is emphasized. Table 2 summarizes these considerations by confronting the abovementioned core elements of the respective understanding of the state of emergency.

Depending on the democratic-theoretical perspective, the state of exception thereby receives a different definition and normative weighting. It is particularly narrowly caught in the liberal discourse, namely as a legal phenomenon against which the democratic legal state has to defend itself by instruments anchored in the constitution. For republicanism, it is a political matter, a situation of disorder that makes it necessary to temporarily abandon the autonomy of the community for its own sake. Montesquieu’s republican heritage is revealed here when he warns that the decay and anomie of the community – unfreedom – without which the citizens also lose their virtue – must be prevented at all costs. Therefore, the limitation or extension of competences of certain branches does not stand in opposition to his idea of a balanced game of powers. He believes that there are times when it becomes necessary to throw, “*pour un moment, un voile sur la liberté*” of the individual, the same way as one “*cache les statues des dieux*”, in order to preserve the freedom of all (Montesquieu 2011, p. 257). The concept of exception in the deliberative theory of democracy is again further expanded because, thanks to its foundation in a theory of communication, it is understood as a discursive phenomenon. This widening seems unavoidable as soon as we additionally include post-structuralism and radical political thought. Already the talk of an emergency unfolds a special effect of mobilization, alarmism as well as the restriction of courses of action in the public discourse, since alternative problem-solving strategies are disqualified from the outset in the escalating logic of the emergency vocabulary. Against this background, the three essential dimensions of the state of emergency – a practical-

political, a formal-legal as well as a linguistic-discursive one – can be emphasized, depending on the perspective of democratic theory.

The following section serves to concretize the relation of law and democracy in times of exception. To this end, the discussion between Schmitt and Kirchheimer – which critically accompanied the decline of the Weimar Republic – is reconstructed. Both theoreticians draw lessons from the agony of Weimar, which are still instructive for the analysis of the connection between democracy and the legality or legitimacy of an exception in terms of democratic theory. Since both defend different legal and political-theoretical positions in accordance with the framework of analysis outlined above, it becomes possible on the one hand to empirically underpin that meta-theoretical framework. On the other hand, conclusions on the evaluation of the crisis-induced death of a democratic regime can be drawn from the respective theoretical perspective.

4 Democratic exception and the rule of law

The specific relationship of law and democracy, of norm and exception under democratic conditions, can be explicated by the decline of the Weimar Republic on two counts. First of all, this perspective is fertile insofar as it allows the observation of a historic-concrete transformation of a normal state into an exceptional state. Secondly, this empirical constellation produces a multifaceted theoretical discourse that seeks to analyse problems the relevance of which has scarcely declined to this day. In this configuration, the competition of the “two sources of legitimation” of modern democracies recognized by Habermas (2001, p. 133) – popular sovereignty and the rule of law – culminated in a radical manner. The confrontation of various schools of law and state theory, as well as the confrontation of competing philosophical traditions, encouraged experimentation with new ideas.

A small – but for the pertinent question very instructive – excerpt from this debate forms the dispute between Kirchheimer and his doctoral supervisor Schmitt in the early 1930s. The previously outlined tension comes here to light in a tangible way. It is well known that Kirchheimer uses Schmitt’s terminology initially to analyse the socialist state theory at that time, and later to criticize the Weimar Constitution together with its parliamentary system. Under current circumstances, the parliament is, as he writes, no longer a “place of creative discussion” but a “place for public declaration of opposing class interests [...], while the true decisions on political issues are being made in private discussions, secret committees and meetings” (Kirchheimer 1928, p. 62). Earlier, in his critique of parliamentarianism, Schmitt (1923, p. 62) deplored the secret policy of interest that began to undermine the basic principles of the liberal state of law and upheld the mere façade of a formal democracy. But Kirchheimer used the sharp rejection of liberal thinking, including the idea of parliamentarianism, for his own purposes and enriched it with theoretical elements of Marxism. In this respect, his criticism takes place under the opposite sign, since it aims at a socialist social order without sharing Schmitt’s fascination for political irrationalism.

Using decisionistic figures of thought, Kirchheimer (1930b, p. 54) still states in 1930 that the Weimar Constitution missed making a fundamental value decision, that it established a merely political democracy which realized a pure formal in lieu of a “substantial” equality (Kirchheimer 1930b, p. 34). The “constitutional institution of the state of emergency”, (Kirchheimer 1930b, p. 19) – the “commissarial dictatorship”, as Schmitt (1921, p. 127) called it earlier in opposition to a “sovereign” one – fulfils the sole purpose of “forcibly reintegrating” (Kirchheimer 1930b, p. 19) the subordinated masses of a “democracy of hostile camps” (Kirchheimer 1930a, p. 95) into the existing state. The bourgeois value system has long been outdated by real socio-economic developments, so that the constitution has degenerated to the plaything of the dominant capital fractions. Although Schmitt (1931, p. 90) notices similar tendencies, such as the disintegration of state unity because of the merging of state and society as well as a pluralization of loyalties, which makes a fundamental political decision impossible, we witness here already first differences in their perception, which sharpen massively as a result of the so-called “Preußenschlag” – the takeover of the Prussian state by the central government based upon emergency decrees.

The beginning of the actual dispute is a text by Kirchheimer, in which he pursues the transformation of the parliamentary rule of law in the presidential emergency dictatorship. In contrast to earlier works, he indeed argues Marxian on the social-theoretical level, but almost positivistic on the level of legal theory. In his eyes, the classic concept of legality has lost its importance through the emergency regulation law. The “unification of legislation and government” has assumed a “permanent character, which leaves no room for the specific nature of legality, namely the verification of the administration based on law” (Kirchheimer 1932c, p. 13). While democracy guarantees its legitimacy only through its legality, the dictatorial exceptional regime invokes an external legitimacy from which the legality feeds itself. This shift in emphasis leads to the elimination of legal barriers by appealing to legitimate purposes. “This ‘post-democratic state’ actually highlights highly pre-democratic elements” (Kirchheimer 1932a, p. 60) by delegitimizing the self-legitimizing “legal order” (Kirchheimer 1932c, p. 26).

In his reaction, which amounts to a general attack on the constitution as a whole, Schmitt defends this structural change by accusing the rule of law of functionalism and empty formalism. For him, the liberal basic principles in themselves are contradictory: “But today the normativistic fiction of a closed system of legality occurs in a conspicuous and irrefutable contradiction to the legitimacy of a truly existing, rightful will” (Schmitt 1932, p. 10). The presuppositions of the legal system no longer seem to exist under conditions of pluralism. In his eyes, the control of the political order fell in the hands of strong organizations and a multiplicity of “total parties”, thereby separating government and its population (Schmitt 1933, p. 363). What Schmitt (1933, p. 87) favours as a therapy is the recourse to a post-liberal form of legitimacy and the need of an authority to determine this form, which knows how to put “the plebiscitary questions rightly at the right time”. The will of the people, as the foundation of political unity, needs canalization for decision-making. Accordingly, he suspects the specific activity of the people in the public acclamation, which has become impossible because of the private individual vote (Schmitt 1928,

p. 245). Then, according to Preuß (1973, p. 15), legitimate is what “expresses” the “worthy unity and substantiality” of the people.

Together with Leites, Kirchheimer writes in a replica against this identity theory of democracy, which relies on a homogeneous conception of the people and results from a specific reading of Rousseau’s work. In this sense, Schmitt emphasizes the attachment of government and administration to the unflinching overall will of the people and points to its qualitative otherness in contrast to the *volonté particulière* (Schmitt 1921, p. 117 ff.). Democracy is “a political term”, he argues, “and therefore leads to a decided political unity and sovereignty”, which points to the whole political body of the people “as a homogeneous and closed” entity (Schmitt 1928, p. 272 f.). In contrast, Kirchheimer shares neither Schmitt’s constitutional analysis (Kirchheimer 1932b, p. 100) nor his existential understanding of the people and the elitist faith in authority resulting from it (Kirchheimer 1932d, p. 65). Schmitt only translates abstract terminology without any reference to reality, which leads to an idea of democracy, relying exclusively on substantive equality, forgetting the relevance of freedom. Unlike him, Kirchheimer (1933, p. 114 f.) recognizes the double twist of the freedom idea: “freedom in the state” and “freedom from the state”. The realization of both is guaranteed only by the coexistence of political, civil, and private rights, he continues.

Schmitt shows no sensitivity to this liberal idea of personal freedom and ignores that democracy is not only functional but also necessary in heterogeneous societies. But, of course, essential conditions, therefore, are legal safeguards (Kirchheimer 1933, p. 129). Schmitt attains to his desired result, the attribution of sovereignty to capable persons, who would have proved “under extraordinary circumstances”, on the basis of the previous self-chosen premises (Kirchheimer 1944, p. 92). There is “no structural difference between the people working in the framework of the Constitution and the Parliament; for both are “*pouvoirs constitués*””, writes Kirchheimer (1933, p. 148). The normativity outlined in this way results from a series of propositions that make it possible for legality and legitimacy to fall apart in the first place.

This discussion reflects the previously described movement of the various democratic theories against the state of emergency. The justification for Schmitt’s fearlessness towards this situation, therefore, can be found in his coalesced republican-communitarian understanding of democracy, which does not recognize an indirect chain of legitimation – which follows the principle of representation – but only a direct instructional form of legitimation. Sovereignty is conceived here from the state perspective, leading to a demos degenerated into a legitimacy stirrup for the emergency order. The security of the state as the guarantor of the community survival is central here. This task legitimizes the restriction of personal liberties. It is the collectivist twist of the idea of freedom flowing into the concept of stability and security that favours the empowerment of the state and – in this case – the executive, in particular.

Kirchheimer (1944, p. 93), again, follows a different path, namely the liberal scepticism towards the exceptional case. In his understanding, personal freedom and collective security fall apart. Hence, his stated aim is to reverse the relationship of

exception and norm defended by Schmitt and to think through the emergency from the rule.

This impression is confirmed if one adds the later works of Kirchheimer in which he proves a special sensitivity to the everyday coexistence of normality and exception. Since order – understood in a procedural way – can only claim a temporal limited validity, it is exposed to permanent change, and not only the object of massive shifts which occur in times of crisis. The simultaneity of normality and exception is already revealed in regulations and opaque processes requiring interpretation, by means of which public practices interfere with the normal life of citizens. Not just sovereign decisions lead to exceptions; instead, these are always inherent in day-to-day practices, which are beyond the reach of citizens, practices, and structures that produce measures uncontrollable by those who experience them in a tangible way.

5 Conclusion

The dispute of Schmitt and Kirchheimer regarding the relationship between the rule of law, democracy, and the state of emergency points to an underlying opposition in terms of democratic theory. Against the background of the previously developed ideal-typical juxtaposition, the former serves as a representative of a strict republicanism in continuation of Rousseau. The Marxist Kirchheimer, on the other hand, felt obliged to defend the liberal view of democracy and law, which runs counter to a homogeneous concept of the people and a collectivist notion of freedom. Schmitt sees the state of emergency as a political category and welcomes it as a legitimate and purifying instrument of the sovereign, whereas Kirchheimer insists on the validity of the given legal barriers. With him, the state of emergency becomes democracy's other, while for Schmitt, the state of exception advances to its logical continuation. In addition to the factual measures, the third strand of a deliberative theory of democracy – which, of course, is not yet developed at that point of time – would also refer to the linguistic constitution of the state of emergency, thereby being able to point to actual threats to democracy even earlier.

The second perspective that was mentioned – the legal-philosophical discourse – emphasizes the inevitability of the exception in modern law, to which every approach makes specific proposals for a solution. While some authors explore the possibility of a new right, others favour the suspension of the established system of rights to restore normalcy. In between are the liberal legal theorists, who strive for the containment of the exception in law. They are looking for a *modus vivendi* to reduce the threat of the emergency case. Again, both authors take opposing positions here. Schmitt welcomes the political intervention by the state to ensure the restoration of the dysfunctional legal system. Kirchheimer advocates the maintenance of the fundamental rights as ineluctable barriers, even in exceptional times.

In the dispute between the two theoreticians, both perspectives on the state of emergency glowed. In order to keep their argumentations clear, this article argues for an analytical separation. Only the meta-theoretical distance makes it possible to rectify the involute discourse about the state of emergency, offering an orientation

framework by means of which contemporary scientific disputes can be mapped and understood in a better way.

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